

STATE OF NEW YORK

8338--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. P. CARROLL -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing Daniel Woolley to receive an accidental disability retirement

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law, Daniel Woolley,
2 who was employed by the town of Clarkstown as a police officer from
3 February 1991 to February 2023 and who retired from service on February
4 25, 2023, and who was diagnosed with an aortic aneurysm of the heart on
5 February 15, 2024, and who, as of the effective date of this act, is
6 receiving a service retirement benefit from the New York state and local
7 police and fire retirement system, shall be entitled to apply for an
8 accidental disability retirement from the New York state and local
9 police and fire retirement system pursuant to section 363 of the retire-
10 ment and social security law if, within one year of the effective date
11 of this act, he shall file a written request with the state comptroller.
12 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would entitle Daniel Woolley, a service retiree of the New York State and Local Police and Fire Retirement System (NYSLPFRS), to apply for an accidental disability retirement, pursuant to section 363 of the retirement and social security law.

There will be an immediate past service cost of \$74,000 as of February 1, 2027. This cost will be shared by the State of New York and the local participating employers in NYSLPFRS and spread over future billing cycles.

Summary of relevant resources:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD10096-07-6

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated April 17, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-181. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.